

FEDERAL MARITIME COMMISSION

USL AUTO EXPORTING INC., <i>Complainant</i>	)	
	)	
Complainant,	)	
	)	
vs.	)	DOCKET NO. 23-13
	)	
EASY SHIPPING CORPORATION, <i>Respondent</i>	)	
	)	
Respondent.	)	

**RESPONDENT’S RESPONSE TO COMPLAINANT’S MOTION FOR SUMMARY
JUDGMENT**

NOW COMES the Respondent, EASY SHIPPING CORPORATION, by and through their attorneys, RAFATI, WARD & ASSOCIATES, P.C., and for their response in opposition to Complainant’s Motion for Summary Judgment, state as follows:

STANDARD OF LAW

Summary Judgment is governed by Rule 56 of The Federal Rules of Civil Procedure and applied in accordance with 46 CFR 502.12. Summary judgment is proper if, and only if, the pleadings, depositions, affidavits and other relevant matters on file show that there is no genuine issue of material fact, and that the movant is entitled to judgment as a matter of law. *Celotex Corp. v. Catrett*, 477 U.S. 317, 323 (1986) and *Prowell v. Loretto Hospital*, 339 Ill. App. 3d 817, 822, 791 N.E.2d 1261, 1265 (2003). In determining whether a genuine issue of material fact exists, a court must construe the pleadings, admissions and affidavits strictly against the movant and liberally in favor of the opponent. *Prowell*, 339 Ill. App. 3d at 822.

The purpose of summary judgment is not to try a question of fact but to determine if one exists. *Gilbert v. Sycamore Municipal Hospital*, 156 Ill.2d 511, 517, 622 N.E.2d 788, 792 (1993). A triable issue precluding summary judgment exists where the material facts are disputed or, where the material facts are undisputed, reasonable persons might draw different inferences from

the undisputed facts. *Id at 518*. Summary judgment should only be allowed when the right of the moving party is clear and free from doubt. *Id*.

INTRODUCTION AND FACTUAL BACKGROUND

Respondent, EASY SHIPPING CORPORATION (hereinafter referred to as “Easy Shipping”) is an entity duly organized under the laws of the State of Illinois. Easy Shipping is a licensed ocean carrier that performs all the services of a carrier and freight forwarder under 46 CFR § 515.11 and 46 CFR §515.21. Complainant, USL AUTO EXPORTING INC. (hereinafter referred to as “USL”) is a North Carolina Limited Liability Company. USL exports vehicles from the United States to other foreign countries. USL is a cargo owner as defined by 46 U.S.C. § 40102(22).

On or about April 13, 2023, USL entered into an agreement in which Easy Shipping agreed to ship four vehicles for USL from Savannah, Georgia to Al Khums, Libya. (hereinafter referred to as “Agreement”). However, on April 13, 2023, USL requested a new booking identifying four vehicles and one motorcycle from Savannah, Georgia to Al-Khoms, Libya. USL has submitted to this Honorable Commission a fraudulently produced email whereby USL has removed the words “Yamaha Motorcycle” as a description of the Yamaha that was included in the email that requested a new booking as an entered contract.

Easy Shipping sent USL a booking confirmation of the vehicle order via email on April 17, 2023. The following day, USL began the process of loading the container under booking number NAM6206412. On or about April 20, 2023, the loader company prepared and loaded the container and provided Easy Shipping with a dock receipt of the booking. The next day, the container was loaded onto the vessel. On May 11, 2023, CMA CGM reached out to USL and reported a misdeclaration in the shipping instructions for the cargo. It is clear and obvious that

Complainant made an attempt to pull a “fast one” on the Respondent and the ultimate shipper CMA CGM. Further, this Complainant knows or should have known that some of the contents of the cargo are prohibited from entering their ultimate destination and that is why they misdeclared and knowingly misrepresented the contents to the Respondent.

ARGUMENT

The Complainant is not entitled to summary judgment. Disputed issues of material fact do exist and therefore should preclude judgment in favor of the Complainant. It is undisputed that the parties entered into a valid and enforceable contract on or about April 13, 2023. Complainant states that the Respondent’s answer shows that there are no factual disputes concerning the allegation that Respondent failed to perform under the contract. However, there are disputed issues of material fact in this case, since USL misrepresented the cargo that was originally agreed upon by the parties and later tried to cover up that misrepresentation by forging/fraudulently editing the contents of the email. Furthermore, it was later discovered that Complainant was sending emails to third parties (mainly CMA CGM) purporting to be someone from Respondent’s company.

Complainant claims Easy Shipping failed to provide four vehicles as outlined in their agreement. This allegation is false and submitted as a fact by Complainant while Complainant has personal knowledge that it is not true. There were numerous emails between the parties which show that Easy Shipping properly provided USL with booking confirmation after both parties entered into the agreement. Easy Shipping undoubtedly has a valid dispute against USL, mainly that the original agreement made in which four vehicles would be shipped was later fraudulently altered and without Easy Shipping’s knowledge and then later the Complainant tried to communicate with a third party directly in order to hide these fraudulent acts.

Complainant's claim of breach of contract is unfounded as Easy Shipping has followed the correct procedure and mechanisms needed to dispute their invoices within both the Agreement and the Terms and Conditions. USL has knowingly misrepresented the items to be shipped and there was no way for Respondent to confirm since the Complainant was responsible for their own loading and docking at the port in Savannah, GA.

CONCLUSION

Complainant's motion for Summary Judgment against Easy Shipping should be denied. There exists issues of material facts that are disputed and still exist regarding whether Easy Shipping or USL breached the contract agreement. Due to the argument presented above in response to the Complainant's Motion for Summary Judgment, there remains a genuine issue of material fact.

WHEREFORE, the Respondent, EASY SHIPPING CORPORATION respectfully asks that this Honorable Commission deny the Complainant's Motion for Summary Judgment and award any other relief it deems necessary.

Respectfully Submitted,

/s/ Fadi Y. Rafati
One of Respondent's Attorney

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